

		representative? <i>See, e.g., J.P. Morgan & Co., Inc. v. Superior Court</i> (2003) 113 Cal.App.4th 195, 212 (“[t]he adequacy inquiry . . . serves to uncover conflicts of interest between named parties and the class they seek to represent”). The parties’ decision to renegotiate a material term of the settlement (i.e., the gross settlement amount) during the pendency of the motion requires denial of the motion. The denial is without prejudice to enable the parties to seek approval of the settlement in the form in which it now exists, including submitting valuation analysis of the settlement amount, the average, high and low individual class and PAGA payments, and any other information necessary for the court to determine whether the settlement is fair, reasonable and adequate. In addition, should plaintiff continue to seek an enhancement award, plaintiff should explain why an enhancement award would be appropriate in light of plaintiff’s apparent decision to reduce the gross settlement amount to obtain more money for herself. A status conference is scheduled for <u>September 24, 2026 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days in advance. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
8	Hannett, et al. v. Serendipity Hearing, Inc., et al. 2021-01216930	<u>Plaintiffs’ Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs’ motion for final approval of a \$325,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement award to each plaintiff (\$10,000.00 total); \$97,500.00 for attorneys’ fees; \$18,477.54 for litigation costs; \$8,950.00 for settlement administration costs; and \$30,000.00 total PAGA penalties (\$22,500.00 to the LWDA). The objection is overruled, as it states no grounds for objection. Lee Decl. (ROA 233) Ex. C. The final accounting hearing is scheduled for <u>March 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller’s Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.

9	Hannett v. Serendipity Hearing, Inc., et al. 2021-01229201	<u>Order to Show Cause re: Dismissal in Case No. 2021-01229201</u> The Order to Show Cause re Dismissal in Case No. 2021-01229201 remains scheduled for June 11, 2026 at 2:00 p.m. in Department CX105. Plaintiffs are ordered to appear. Failure to appear will result in dismissal of the entire action.
10	Jones, et al. v. JW Marriott Anaheim Resort 2021-01183306	Off calendar.
11	Navarro v. Beta Bionics, Inc. 2024-01392520	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$200,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$60,000.00 for attorneys' fees (not to exceed); \$25,000.00 for attorneys' costs (not to exceed); \$5,850.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by June 18, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) fully executed copies of the amendments to the settlement agreement; and (3) the notice packet (revised as stated above). Only <u>one</u> copy of the notice packet should be attached to the proposed order as an exhibit. Duplicate or superseded copies of the notice packet should not be attached to the proposed order. The notice packet should include the exclusion and objection forms, which should be revised as stated in the court's February 5, 2026 order (ROA 101): (1) All text after "[ADDRESS LINE 2]" and before "By signing below, I am excluding myself from the Settlement" on the exclusion form (i.e., the bolded text beginning with "DO YOU WANT TO PARTICIPATE . . ." and ending with "OR NOT PARTICIPATING IN THE THIS SETTLEMENT") should be removed; and (2) The following sentence should be removed from the objection form: "I HEREBY CONFIRM THAT I WAS EMPLOYED BY BETA BIONICS, INC. DURING THE CLASS PERIOD AS A NON-EXEMPT EMPLOYEE." The final approval hearing is scheduled for <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).